

Data Controller (99.3%), Legal Basis (61.6%), Non-Personal Data (81.0%), Personal Data (74.6%), Retention (80.3%):

Terms of Service - Privacy Policy - Calflora Calflora Terms of Service Privacy Policy Calflora
Terms of Service PLEASE READ THESE TERMS OF SERVICE CAREFULLY.

Data Controller (84.4%), Personal Data (91.7%):

"Your Data" means data entered into the System by You, including observations and Weed Manger treatments.

Legal Basis (62.0%), Personal Data (94.4%), Processing (91.4%), Required Purpose (70.3%):

1.2."Privacy Policy" means Calflora's privacy policy, currently posted at [//www.calflora.org/tos.html#privacy](http://www.calflora.org/tos.html#privacy) 1.3."System" means Calflora's website at calflora.org, as well as the underlying database of observations and photographs of plants in California and any other websites or applications (including but not limited to the Calflora Pro application) used to access or submit information to the System.

Data Subject (84.3%), Personal Data (96.9%), Processing (98.9%):

1.5."User" means any individual who uses the System on Your behalf or through Your account or passwords, whether authorized or not.

Data Source (67.3%), Data Subject (75.2%), Not Required Purpose (69.5%), Personal Data (92.9%), Processing (99.3%):

1.6."Public Data" means data that you have uploaded to the System and published, excluding images.

Personal Data (99.4%):

1.7."Private Data" means your email address and any other data you submit to Calflora that is not marked for publication.

Legal Basis (62.5%), Non-Personal Data (72.0%), Right (97.8%):

You agree to permanently relinquish your rights and dedicate the Public Data into the public domain (with a public license fallback) in and to the Public Data pursuant to the terms of the "Creative Commons Zero" CC0 Creative Commons 1.0 Universal, available at <https://creativecommons.org/publicdomain/zero/1.0/legalcode>.

Consent (66.1%), Data Subject (90.1%), Processing (91.9%):

For existing users this grant pertains to data previously uploaded to the service and is intended as a clarification of the "I grant permission to the public to use data I contribute" phrasing that was part of the Calflora signup process.

Consent (78.0%), Contract (67.0%), Data Controller (76.4%), Data Subject (97.5%), Legal Basis

(93.6%), Not Required Purpose (83.8%), Processing (98.2%), Required Purpose (69.5%), Right (82.1%):

These Terms of Service constitute an agreement (this "Agreement") by and between: (i) Calflora, a California nonprofit corporation ("Calflora"), and (ii) the person executing this Agreement, or, if such person is using or will use Calflora on behalf of an entity, then such entity ("You").

Consent (75.6%), Required Purpose (89.3%):

You may subsequently change the license for photographs in the preferences section of the website to be "Calflora use only", instead of Creative Commons BY-NC, in which case you have granted Calflora a perpetual, irrevocable, worldwide, royalty-free license to use the photograph in the System and in other uses by Calflora in the course of its mission to provide information about plants in California, such as use by Calflora staff in presentations and in Calflora publications.

Contract (65.5%), Processing (71.9%), Required Purpose (76.5%):

This Agreement is effective as of the date You click the button indicating assent to these terms of service (the "Effective Date").

Processing (90.3%):

Most portions of the Service are provided free of charge.

Third Party (80.7%):

Your Public Data will be provided as part of the service to the public at large, including possibly copies of data provided to Calflora's partners.

Personal Data (86.8%):

3.5.Calflora Use of Private Data.

Consent (85.0%):

Your use of and Calflora's provision of Calflora's System (as defined below in Section 1.3) are governed by this Agreement.

Consent (65.7%), Processing (88.0%):

Unless it receives Your prior written consent, Calflora will make reasonable efforts to only access, process, or otherwise use Private Data as specified in the Calflora Privacy Policy.

Processing (98.5%):

You may delete your photographs through the service, in which case Calflora will make reasonable efforts to discontinue its use.

Authority (72.4%), Legal Basis (99.3%), Not Required Purpose (71.1%), Right (86.2%):

Calflora may also disclose Your Data as required by applicable law or by proper legal or governmental authority.

Third Party (97.9%):

The Privacy Policy applies only to the System and does not apply to any third party website or service linked to the System or recommended or referred to through the System or by Calflora's staff.

Processing (71.8%):

You recognize and agree that hosting data online involves risks of unauthorized disclosure or exposure and that, in accessing and using the System, You assume such risks.

Third Party (98.3%):

Calflora offers no representation, warranty, or guarantee that Your Data will not be exposed or disclosed through errors or the actions of third parties, or by Calflora itself.

Data Subject (67.0%):

Calflora will have no responsibility or liability for the accuracy of data uploaded to the System, including without limitation Your Data and any other data uploaded by other Users.

Required Purpose (64.8%):

Weed Manager users should not rely solely on the summaries, reports, or analyses of Weed Manager, and the User assumes the ultimate responsibility for verifying the accuracy of the reports and the purposes for which such reports are suitable.

Not Required Purpose (88.3%), Processing (89.6%):

Calflora may use, reproduce, sell, publicize, or otherwise exploit Aggregate Data in any way, in its sole discretion.

Data Subject (75.3%), Personal Data (99.6%):

"Aggregate Data" refers to Your Data with the following removed: personally identifiable information and the names and addresses of You and any of Your Users, and includes unpublished observations with such information removed.

Processing (98.0%), Required Purpose (90.8%):

You shall not: (a) use the System for service bureau or time-sharing purposes or in any other way allow third parties to exploit the System or reproduce a significant portion of the System or underlying database; (b) provide System passwords or other log-in information to any third party; (c) share non-public System features or content with any third party; or (d) access the System in order to build a competitive product or service.

Organisational Measure (69.4%):

You shall take reasonable steps to prevent unauthorized access to the System, including without limitation by protecting Your passwords and other log-in information.

Legal Basis (76.1%):

4.3.Compliance with Laws.

Legal Basis (98.1%):

In Your use of the System, You shall comply with all applicable laws, including without limitation laws governing the protection of personally identifiable information and other laws applicable to the protection of Your Data.

Right (87.2%):

IP & FEEDBACK.

Required Purpose (79.9%), Right (63.2%):

Calflora retains all right, title, and interest in and to the System, including without limitation all software used to provide the System and all graphics, user interfaces, logos, and trademarks reproduced through the System.

Legal Basis (78.8%):

You recognize that the System and its components are protected by copyright and other laws.

Not Required Purpose (61.1%):

Calflora has not agreed to and does not agree to treat as confidential any Feedback (as defined below) You or Users provide to Calflora, and nothing in this Agreement or in the parties' dealings arising out of or related to this Agreement will restrict Calflora's right to use, profit from, disclose, publish, keep secret, or otherwise exploit Feedback, without compensating or crediting You or the User in question.

Legal Basis (95.1%):

6.1.Each party represents and warrants that: (a) it has the full right and authority to enter into, execute, and perform its obligations under this Agreement and that no pending or threatened claim or litigation known to it would have a material adverse impact on its ability to perform as required by this Agreement; (b) it has accurately identified itself and it has not provided any inaccurate information about itself to or through the System; and (c) it is a corporation, the sole proprietorship of an individual 13 years or older, or another entity authorized to do business pursuant to applicable law.

Legitimate Interest (70.1%):

This Agreement does not grant You any intellectual property license or rights in or to the System or any of its components.

Legal Basis (70.9%):

Notwithstanding anything in subsection 3.3, You acknowledge and understand that the primary

purpose of Calflora is as a public database and it is not a suitable storage service for data that requires a high degree of security, and Calflora's liability for accidentally published or lost data is limited pursuant to section 8.

Third Party (67.3%):

For the avoidance of doubt, Calflora's liability limits and other rights set forth in this Article 8 apply likewise to Calflora's affiliates, licensors, suppliers, advertisers, agents, sponsors, directors, officers, employees, consultants, and other representatives.

Third Party (64.7%):

(The "Calflora Associates" are Calflora's officers, directors, shareholders, parents, subsidiaries, agents, successors, and assigns.) 8.

Third Party (72.6%):

Each party acknowledges that it has read this agreement, understands it, and agrees to be bound by its terms.

Contract (74.0%):

Upon termination of this Agreement, You shall cease all use of the System and delete, destroy, or return all copies of the Documentation in its possession or control.

Third Party (94.6%):

10.1.Independent Contractors.

Third Party (86.5%):

The parties are independent contractors and shall so represent themselves in all regards.

Processing (86.4%), Retention (69.7%):

Calflora may send notices pursuant to this Agreement to Your email address provided as part of your registration for the Service, and such notices will be deemed received 24 hours after they are sent.

Third Party (74.2%):

No delay, failure, or default, other than a failure to pay fees when due, will constitute a breach of this Agreement to the extent caused by acts of war, terrorism, hurricanes, earthquakes, other acts of God or of nature, strikes or other labor disputes, riots or other acts of civil disorder, embargoes, or other causes beyond the performing party's reasonable control.

Consent (76.8%):

You may not assign this Agreement or any of its rights or obligations hereunder without Calflora's express written consent.

Consent (74.6%), Third Party (70.3%):

Calflora may assign this Agreement and its rights or obligations to another party without your prior written consent.

Legal Basis (91.7%):

To the extent permitted by applicable law, the parties hereby waive any provision of law that would render any clause of this Agreement invalid or otherwise unenforceable in any respect.

Legal Basis (98.2%):

10.7.Choice of Law & Jurisdiction: This Agreement and all claims arising out of or related to this Agreement will be governed solely by the internal laws of the State of California, including without limitation applicable federal law, without reference to: (a) any conflicts of law principle that would apply the substantive laws of another jurisdiction to the parties' rights or duties; (b) the 1980 United Nations Convention on Contracts for the International Sale of Goods; or (c) other international laws.

Right (74.9%):

You acknowledge and agree that You and Calflora are each waiving the right to a trial by jury or to participate as a plaintiff or class member in any purported class action or representative proceeding.

Legal Basis (84.7%):

law or regulation; or (b) export any software provided by Calflora or otherwise remove it from the United States except in compliance with all applicable U.S.

Contract (87.2%):

10.11.Entire Agreement.

Contract (65.2%):

This Agreement sets forth the entire agreement of the parties and supersedes all prior or contemporaneous writings, negotiations, and discussions with respect to its subject matter.

Consent (61.1%):

Such amendment will be deemed accepted and become effective 30 days after such notice (the "Proposed Amendment Date") unless You first give Calflora written notice of rejection of the amendment.

Data Source (77.5%), Personal Data (99.9%), Processing (99.4%):

Calflora Privacy Policy Last updated: September 18, 2018 Information We Collect The Website may collect the following Personally Identifiable Information ("PII") from users who use our services: Name, e-mail address, list of user groups you belong to (e.g., your company), address, amounts of donations or payments, and other information you submit voluntarily as part of an interaction with us (e.g., content of emails).

Personal Data (99.5%), Processing (87.7%):

Search queries are kept, but only in association with an IP address, not other PII.

Personal Data (84.3%), Processing (99.5%), Technical Measure (92.8%):

The Website uses cookies, and may store the above-listed information (except search queries) in one or more cookies.

Non-Personal Data (84.7%), Required Purpose (84.3%):

The Website may use IP address and/or http session information to track your path through the website.

Processing (96.6%):

The "Observer Pro" Android phone application uses a third party service (Crashlytics) that collects information that may be used to identify you.

Personal Data (64.2%):

Much of the data is provided by amateur volunteers and not verified by experts, and accordingly may be inaccurate.

Processing (94.6%), Required Purpose (99.4%):

Calflora will use your email address to communicate with you about news and updates to the Website, and about Calflora as an organization, such as events and new projects.

Third Party (70.4%):

8.2.Exclusion of Consequential Damages.

Consent (73.1%):

Calflora will not share your email with any other category of company, or with a person or company that would re-share your email address, without your permission.

Consent (65.4%):

You may choose to provide your email address to other registered Calflora users in the preferences section of the website.

Processing (90.2%), Required Purpose (97.7%):

Calflora uses IP address and/or HTTP session information to understand how you use the Website (such as what pages you visit), and to generate aggregate reports about our userbase from information that is transmitted in the normal course of HTTP client-server interactions.

Automated Decision Making (64.9%), Consent (65.1%):

Email Regarding Comments on Your Records When you make a new account, a preference is automatically set for you to receive email about comments on your records on a weekly basis.

Consent (82.5%):

For others, such as Weed Manager or other designated parts of the System, You may have to pay

Calflora a fee for access, which will be set forth in a separate ordering method specifying the term and pricing.